As it happened, the government did not wait long. About five weeks after the judgement, it filed a review petition at the Supreme Court seeking a reconsideration of the Minerva Mills judgement. Justice Bhagwati's criticism of Justice Chandrachud's management of the case turned out to be the linchpin of the government's case. The government argued that the judgement was not a decision of the court at all, but only consisted of the opinions of individual judges. This argument was innovative, but also inherently weak – for judges to consult with one another was always desirable, but never strictly necessary. Besides, it would hardly set a good precedent to allow unsuccessful litigants to have judgements reviewed based on the internal dynamics of the decision-making process.

Palkhivala described the government's attempt to have the decision reviewed as a 'shocking exhibition of the arrogance of power'.[44] He staunchly opposed the petition when it arose for hearing. His argument was that the only reason the Supreme Court was even willing to consider the petition in an oral hearing rather than dismissing it on the papers was that it had been filed by the government: '[I]f Minerva Mills had lost and filed an application of this nature, would you have entertained it?' Chief Justice Chandrachud tried to calm Palkhivala down with some humour: 'Anyone is welcome to file an application. Someone can file a suit saying that the Supreme Court belongs to him. We will examine that too appropriately.'[45] Ultimately, the hearing was adjourned with no fixed date for the next hearing, on the basis that one of the judges on the bench, Justice Kailasam, was scheduled to retire the following day. The review petition died a natural death and the government did not ultimately pursue it.

The Minerva Mills judgement was not only unpopular within the government of the day, but it also had its share of critics on the bench. In a different case about two years later, a bench of the Supreme Court (with Justice Bhagwati being the only overlapping participant in both cases) criticized the judgement for deciding questions that did not naturally arise from the facts before it. This was, in effect, a rebuke for walking into Palkhivala's 'trap' of using the case as a vehicle to delimit Parliament's power to amend the Constitution. The court's criticism was not muffled: 'We have